

House File 470

H-1096

1 Amend House File 470 as follows:

2 1. Page 1, by striking lines 1 and 2 and inserting:

3 <DIVISION I

4 DEFINITIONS — LICENSE AUTHORIZATIONS — BOND REQUIREMENTS>

5 2. Page 1, after line 33 by inserting:

6 <Sec. _____. Section 123.30, subsection 4, Code 2025, is
7 amended to read as follows:

8 4. Notwithstanding any provision of **this chapter** to the
9 contrary, a person holding a retail alcohol license to sell
10 alcoholic beverages for consumption on the licensed premises
11 may permit a customer to remove one unsealed bottle of wine
12 for consumption off the premises if the customer has purchased
13 and consumed a portion of the bottle of wine on the licensed
14 premises. The licensee or the licensee's agent shall securely
15 reseal such bottle in a bag designed so that it is visibly
16 apparent that the resealed bottle of wine has not been tampered
17 with and provide a dated receipt for the resealed bottle of
18 wine to the customer. A wine bottle resealed pursuant to the
19 requirements of **this subsection** is subject to the requirements
20 of **sections 321.284 and 321.284A**. ~~A person holding a retail~~
21 ~~alcohol license to sell alcoholic beverages for consumption on~~
22 ~~the licensed premises may permit a customer to carry an open~~
23 ~~container of wine from the person's licensed premises into~~
24 ~~another immediately adjacent licensed premises that is covered~~
25 ~~by a license or permit that authorizes the consumption of wine,~~
26 ~~a temporarily closed public right-of-way, or a private place.~~

27 Sec. _____. Section 123.30, Code 2025, is amended by adding
28 the following new subsection:

29 NEW SUBSECTION. 5. *a*. Notwithstanding any provision of
30 this chapter to the contrary, a person holding a retail alcohol
31 license to sell alcoholic beverages for consumption on the
32 licensed premises may permit a customer to carry an alcoholic
33 beverage in an open container from the licensed premises to any
34 of the following immediately adjacent locations:

35 (1) A licensed premises authorized to sell the same type of

1 alcoholic beverage for consumption on the licensed premises.
2 (2) A temporarily closed public right-of-way.
3 (3) A private place.
4 *b.* The licensee of the immediately adjacent licensed
5 premises, or owner of the immediately adjacent private
6 place, may refuse to allow the customer to enter the licensed
7 premises or private place with an alcoholic beverage in an open
8 container.>
9 3. Page 3, after line 23 by inserting:
10 <Sec. _____. Section 123.127, subsection 2, paragraph g, Code
11 2025, is amended by striking the paragraph.>
12 4. Page 3, after line 34 by inserting:
13 <Sec. _____. Section 123.175, subsection 2, paragraph g, Code
14 2025, is amended by striking the paragraph.>
15 5. Title page, line 2, after <authorizations> by inserting
16 <, bond requirements,>
17 6. By renumbering as necessary.

JONES of Clay